CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
SPECIAL COMMISSION MEETING
Friday, August 23, 2019
4:15 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 4:15 p.m. on Wednesday, August 23, 2019 in the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

1. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Joseph L. Kelley, Commissioner Alvin Burke, and Commissioner Sherelean Bass. Also in attendance were: Assistant City Manager George Ellis, Assistant City Attorney Michelle Pamies, and City Clerk Joanna Flores.

2. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

3. INVOCATION:

The invocation was delivered by Commissioner Joseph L. Kelley.

4. PUBLIC INPUT:
Agenda Items Only

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said she was pleased with the process for the selection of the city manager. She said she is glad the new manager will have residence within the City limits so they can be aware of what is going on as opposed to living elsewhere. She said she hopes the commission will consider the fact that the candidates traveled from afar and have to relocate their families and will not use previous practices to get rid of the manager if one or two commissioners are upset with him or her.

5. CITY COMMISSION DISCUSSION ON CITY MANAGER FINALISTS:

Colin Baenziger, Baenziger & Associates, recommended that the commission select the manager by using the ballot process that was previously used at the last finalist meeting.

Mayor Pigatt asked if there were any objections to the process.

Commissioner Kelley said he is not a fan of the ballot process and wanted it to be done by the resolution and the vote.

Mayor Pigatt asked the attorney if there was anything wrong with the ballot process.

Assistant Attorney Pamies said either process can be used at the discretion of the commission.

Vice Mayor Davis said he does not see the need to discuss each candidate at this point because it is already narrowed down. They just need to take a vote.

Commissioner Bass said she is uncomfortable voting for a manager at this time. She has stated before that the process should not be complete in one day, but she is for narrowing the selection down to two.

Mr. Baenziger proceeded with the ballot process and each commissioner made their selection of one or two candidates and checked their name at the bottom.

The selections were captured as follows:

Commissioner Bass: John Pate and Lawrence McNaul

Commissioner Burke: John Pate

Commissioner Kelley: John Pate and Lawrence McNaul

Vice Mayor Davis: John Pate and William Shanahan

Mayor Pigatt: John Pate

Commissioner Kelley stated for the record that he does not agree with this process, but since the assistant attorney said it was legal and proper, he will go along with it.

Mayor Pigatt said Robert's Rules of Order states that voting can be done several ways including this one.

The assistant attorney was asked to read the resolution into the record.

6. RESOLUTION:

a) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPOINTING JOHN PATE AS THE CITY MANAGER FOR THE CITY OF OPA-LOCKA, FLORIDA, SUBJECT TO CONTRACT NEGOTIATIONS ACHIEVING MUTUALLY AGREEABLE TERMS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Commission*

The above resolution was read by Attorney Austin Tamies.

It was moved by Vice Mayor Davis, seconded by Commissioner Burke for discussion.

Mayor Pigatt made a motion to appoint himself as the negotiator for the contract for the new incoming city manager.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis to appoint the mayor as the negotiator for the contract for the new incoming city manager.

Commissioner Kelley said he thought they were voting on the resolution and the negotiations would follow, not to insert it at this time. He sees it in the section of the resolution, however, it has not been discussed; he had wished the attorney would have read it into the record for transparency.

Mayor Pigatt said since he has been on the dais he has not seen where any section of a resolution had to be read in to the record. He asked Commissioner Kelley if he wanted it to be read into the record.

Commissioner Kelley said it is clarified and they are on the same page.

There being no further discussion, the motion to appoint the mayor as negotiator for the city manager contract passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

There being no discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

9. ADJOURNMENT:

There being no further business to come before the Commission, it was moved by Commissioner Burke, seconded by Vice Mayor Davis to adjourn the meeting at 4:45 p.m.

MAYOR

ATTEST:

CITY CLERK